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BOSNIA AND HERCEGOVINA

Human Rights Developments

There were significant improvements in several areas of human right concern in Bosnia and Hercegovina during 1999, the fourth year of implementation of the Dayton Peace Agreement (DPA). Six persons indicted for war crimes were arrested, and one extradited, including several high-ranking officials; "minority returns" (returns of refugees and displaced persons to an entity where the post-war majority is of a different ethnicity) increased somewhat during the year, including to areas that had previously experienced few returns; the death penalty was abolished in the Federation, and legislation was introduced for its abolition in the Republika Srpska; and the authorities increasingly complied with the decisions of national human rights institutions. Despite these improvements, there continued to be widespread human rights abuses, and progress often came only after substantial international pressure.

Political Developments

In negotiations leading up to the DPA, the parties had agreed to binding arbitration to resolve control of the Brcko area in eastern Bosnia. On March 5, arbitrator Roberts Owen ruled that Brcko should be a neutral district administered jointly by all three ethnic groups. Politicians from all parties in Republika Srpska rejected the decision and withdrew for over two months from common (inter-entity) institutions.

On the same day as the Brcko decision, High Representative Carlos Westendorp dismissed Nikola Poplasen as president of the Republika Srpska (RS), claiming that Poplasen had abused his power and blocked the will of the people of RS by refusing to nominate Milorad Dodik as prime minister, even though Dodik was the only candidate who could have garnered a majority in the National Assembly. However, Poplasen ignored Westendorp's decision and continued to act as president until Dodik's caretaker government barred Poplasen from his office in September. This political struggle left the RS with only a caretaker government and no legal president during this period, which created uncertainty, for example, about the validity of laws passed by the National Assembly.

In the days immediately following these controversial decisions by the international community, international representatives were attacked on several occasions. In Ugljevik, soldiers of the Stabilization Force (SFOR) killed a local politician after they were attacked by him when they left a restaurant on March 5. In other places in the Republika Srpska, offices and vehicles of international organizations were damaged by violent crowds. When NATO began bombing the Federal Republic of Yugoslavia (FRY) in March, most international organizations withdrew their international personnel from the RS for fear of being further targets of violence. They fully resumed their operations again in June.

On March 28, Federation Deputy Minister of Interior Jozo Leutar died from injuries sustained in a car-bombing on March 16. Leading Bosnian Croat politicians immediately claimed that the explosion had been an act of Bosniaks against the Bosnian Croat population of Bosnia and Hercegovina and temporarily suspended their participation in common and Federation institutions. As of this writing, the perpetrators had not been identified and the investigation appeared stalled.

War Criminals

In December 1998, SFOR arrested General Radislav Krstic, commander of the Fifth Corps of the Republika Srpska Army, on the basis of a sealed indictment that accused Krstic of war crimes during the fall of Srebrenica in July 1995. In July 1999, SFOR troops arrested Radoslav Brdjanin, a former Bosnian Serb vice-president under Radovan Karadzic. On August 25, the Austrian police arrested General Momir Talic, chief of staff of the Republika Srpska Army, while he was attending a conference in Vienna. Talic and Brdjanin are both accused of conducting "ethnic cleansing" operations in the Prijedor and Sanski Most regions in 1992. Moreover, SFOR troops arrested indictees Kolundzija and Kovac in June and August respectively, and Dragan Gagovic was killed while resisting arrest by SFOR in January. On August 9, Croatia extradited Vinko Martinovic, who is accused of crimes related to the "ethnic cleansing" in Mostar in 1993.

Thirty-one publicly indicted persons remain at large. Although the majority are believed to reside in the RS, RS authorities made no effort to arrest indictees.

Return of Refugees and Displaced Persons

On December 2, 1998, the Republika Srpska National Assembly finally passed new housing legislation, abolishing the "Law on Abandoned Property" which had been a significant impediment to the return of refugees and displaced persons. Despite the new legislation, however, few claims were resolved during the year, in large part because of a lack of trained personnel and resources, as well as the political will, to implement the law. Moreover, in several places the military interfered, sometimes even physically, to prevent soldiers from being evicted from the apartments they occupied so that the pre-war owners could be reinstated. In the Federation, a growing number of property claims were resolved, but the police often remained unwilling to execute eviction orders.

Given the lack of substantial minority return during 1998, the Office of the High Representative (OHR), established by the DPA to oversee the implementation of the civilian provisions of the peace agreement, developed an "action plan," which set a goal of 120,000 minority returns in 1999. As a result, some refugees successfully returned to their pre-war homes in areas such as Zvornik, Nevesinje, and other parts of eastern Republika Srpska that had previously had virtually no minority returns. Nevertheless, the number of minority returns fell far short of the 120,000 goal set by the plan. According to the "Statistics Package" of the United Nations High Commissioner for Refugees (UNHCR), only an estimated 9,500 minority returns had taken place between January 1 and July 31, 1999, of which less than 1,000 were to the RS. In part, this may be explained by the crisis in FRY: international agencies diverted personnel and resources to Kosovo and tens of thousands of refugees fled from FRY to Bosnia during the first half of 1999.

Meanwhile, ethnically motivated violence also continued to obstruct return. On March 20, unknown perpetrators bombed a Bosniak-owned house in the Croat-controlled town of Stolac, which has been the scene of widespread violence, including explosions and arson, targeting Bosniak returnees, in 1998. In April, several houses of Bosniaks returnees were set on fire, and the local mosque was damaged by a hand grenade in Prozor-Rama. In Kotor Varos, a group of Serbs blocked the road to prevent Bosniaks from returning to the town after the municipal assembly voted unanimously against their return. In Modrica, approximately 500 Serbs assaulted a group of sixty Bosniak returnees, injuring several people, in June. On September 9, seven mortar grenades were fired at Fazlagica Kula, a Bosniak village near Gacko (RS).

Media

The independent media in Bosnia and Hercegovina continued to face harassment and governmental pressure. On several occasions during the year, municipal authorities tried to interfere with the work of independent journalists. Early in the year, journalists in Gradacac were allegedly forced to submit articles for review to a municipal official before publishing. In May, the mayor of Zenica, Ferid Alic, informed the editor-in-chief of RTV Zenica that he would be removed from his position unless several editors from the station were freed. After the editors sent a letter to OHR, the situation was diffused. Other journalists were harassed or even physically attacked. Two journalists from Rijeka were beaten by unknown assailants in Mostar, who accused them of publishing articles criticizing Croatian

President Tudjman. The offices of the independent Radio Osvit were demolished by angry crowds after the Brcko decision was announced.

Criminal libel statutes continued to be a tool used by government authorities against the independent press. On May 27, a Sarajevo court sentenced Senad Avdic, editor-in-chief of Slobodna Bosna, a Sarajevo weekly, to three months in prison and a one-year suspended sentence for libel. On July 30, Carlos Westendorp suspended the sanctions for libel and defamation in the entities' criminal codes and ordered the authorities to replace the respective articles with civil remedies for libel by the end of the year.

On April 29, the Independent Media Commission (IMC), acting under the auspices of the OHR, published a code of conduct for journalists and established an SOS Hotline for journalists under threat. In the course of the year, the IMC penalized several media that did not adhere to the code of conduct or otherwise violated the rules of the IMC.

Rule of Law

The new Federation penal code, which came into force in November 1998, abolished the death penalty. It is expected that the new Penal Code in the Republika Srpska, which should be passed by the end of the year, will also abolish capital punishment.

In late 1998, the United Nations Mission in Bosnia and Hercegovina (UNMIBH) initiated the Judicial System Assessment Programme (JSAP) to evaluate the judiciary. In its first report, JSAP concluded that among other problems, the judiciary suffered from inappropriate political influences. This was abundantly clear in the trial of the Zvornik Three, three former Srebrenica residents who were detained and tried for murder without due process. Several days before the final hearing in the case, the judge was called to a meeting with the minister of justice, where the exchange value of the suspects was discussed. At the hearing itself, a Ministry of Justice official was seen entering the judge's room. Although the Supreme Court ultimately quashed the judge's verdict and ordered a retrial, it did not address the issue of political interference.

There were positive developments as well: in March, Bosnian Serb Miodrag Andric was acquitted of war crimes by the Sarajevo Cantonal Court, after the court for the first time allowed witnesses to be heard in a court in Rogatica (RS) and agreed to a re-enactment of the crime in the RS. In April, a court in Sokolac (RS) acquitted six suspects who had been severely tortured during the investigation into the murder of a local police commander. In June, a court in Sarajevo quashed the initial verdict in the case of Ibrahim Djedovic and ordered a retrial because of procedural irregularities and human rights violations during the initial trial.

Defending Human Rights

Both Bosnian and international nongovernmental organizations (NGOs) were generally able to perform their work, although they did report some incidents of harassment, particularly in times of heightened tensions in the RS. While the authorities in both the Federation and the RS failed to comply with legally binding decisions of the Office of the Ombudsperson and the Human Rights Chamber in a number of cases, their overall compliance increased substantially over previous years.

The Federation Ombudsmen continued their invaluable work to ensure human rights protection. However, there were growing concerns that the institution might lose its independence once its initial mandate expires and new ombudsmen are appointed by the Federation government. In the RS, the establishment of an Ombudman's office was delayed by negotiations regarding the ethnic composition of the institution.

The Role of the International Community

Most of the positive developments made during the past year would not have been achieved without continued pressure by the international community, and often were the direct result of decisions

imposed by international institutions. While there was some controversy about the level of international control exerted in Bosnia and Hercegovina, it was obvious that the current authorities remained unwilling to implement key provisions of the DPA without sustained pressure from the international community.

The Office of the High Representative (OHR)

The OHR played the leading role among international organizations charged with the civilian implementation of the DPA. When the authorities were unwilling or unable to resolve their differences, the High Representative Carlos Westendorp often imposed a solution to key issues such as the extensions of the deadlines for reclaiming accommodations, the cancellation of permanent occupancy rights issued during and after the war, and the suspension of the power of municipal authorities to reallocate socially owned land. The high representative also dismissed several officials who obstructed the implementation of the DPA. In addition to the dismissal of RS President Poplasen, Westendorp dismissed the mayors of Bugojno, Drvar, and Sanski Most, and ministers in the Livno and Tuzla cantons.

In August, Wolfgang Petritsch took over from Carlos Westendorp as high representative. In his speech to the Peace Implementation Council Steering Board Ministerial Council in September in New York, Petritsch stated he aimed to "accelerate the rate at which responsibility for governance and particularly the creation and effective operation of state institutions is assumed by the local political leaders." Although it is too early to judge whether Petritsch's policy will deviate significantly from that of Westendorp, this statement indicated that he may be less willing to impose laws or dismiss obstructive officials. Nevertheless, Petritsch dismissed several local officials during the first weeks of his tenure.

Stabilization Force (SFOR)

SFOR, consisting of some 30,000 troops from forty countries, continued to provide a secure environment for the civilian implementation of the DPA. In September, NATO announced that SFOR would be reduced to around 21,000 troops. SFOR played a more active role than in previous years in providing security for returnees through increased patrolling and the deployment of the Multinational Specialized Units in case of civil unrest. Moreover, at this writing, SFOR had contributed directly to respect for human rights by detaining four indictees, although thirty-two publicly indicted war crimes suspects remained at large.

United Nations

On November 30, 1998, the General Assembly requested the Secretary General to provide a comprehensive report on events in the U.N. Safe Area of Srebrenica from its establishment in 1993 until the signing of the DPA in 1998. Although the report was due on September 1, at this writing the report had not yet been finished. In December 1998, the General Assembly accepted a resolution calling upon the Bosnian authorities to respect their human rights obligations, and, among other things, strongly condemning the RS authorities for their failure to cooperate with the ICTY. In April 1999, the Human Rights Commission accepted a resolution which, among other, once again called attention to the plight of "floaters," i.e. people who have been evicted from their accommodation but have remained in their home-towns without alternative housing.

In July 1998, the Security Council expanded its mission in Bosnia to include a program to monitor and assess the court system, the Judicial System Assessment Programme.

The U.N. International Police Task Force (IPTF) continued its work to restructure the police forces and monitor their activities. Special attention was paid to the police department in Stolac, the scene of a series of return-related incidents. The whole Stolac police department was put on a three-month probation, and a one hundred day Agenda for Action was implemented to ensure that the Stolac police department would meet the minimum policing standards. UNMIBH's Human Rights Office (HRO) played a significant role in enhancing respect for human rights by investigating and publicizing police abuses. As a result of its work, the IPTF commissioner dismissed several police officers for abusive behavior or obstruction of the DPA. UNHCR continued to play a leading role in advancing the return of refugees and displaced persons. One of the instruments used by UNHCR was inter-entity buslines,

which encourage displaced persons to visit their original homes to assess for themselves whether conditions are suitable for return.

International Criminal Tribunal for the Former Yugoslavia (ICTY)

As of this writing, the ICTY had thirty-one indictees in custody, while two indictees were released pending appeals. However, another thirty-two publicly indicted war crimes suspects remained at large, including prominent leaders like Karadzic, Mladic, Naletilic, and Milosevic. In 1999, the ICTY achieved convictions for rape in two cases, Celebici and Furundzija. In the Tadic case, in July the court accepted the prosecutor's appeal that the war in Bosnia and Hercegovina was in fact an international conflict, sentencing Tadic to twenty years in prison. Furthermore, the court sentenced Zlatko Aleksovski to two years and six months in prison for outrages on personal dignity.

On September 15, Carla Del Ponte took over as chief prosecutor from Louise Arbour.

The Organization for Security and Cooperation in Europe (OSCE)

The OSCE decided to postpone the local elections, slated for September, until April 2000, because the OSCE was still in the process of drafting a permanent election law, which aims to foster more moderate politics and encourage politicians to garner support beyond their own ethnic group. Moreover, the OSCE remained involved in the implementation of election results from the 1997 and 1998 municipal elections in Srebrenica, Drvar, and other places.

The Human Rights Department of OSCE's mission to Bosnia, apart from addressing human rights abuses through its field offices, published a report on employment discrimination finding widespread employment discrimination which is often a factor in the decision of refugees not to return to their homes.

Council of Europe

In December 1998, the Eminent Lawyers' Report on Bosnia and Hercegovina concluded that the human rights situation in Bosnia and Hercegovina did not conform to Council of Europe standards. In April, the rapporteurs of the Political Affairs Committee and the Legal Affairs Committee again drew attention to significant shortcomings in this respect. On May 26, the Political Affairs Committee published a list of conditions to be fulfilled by September 1999, including adoption of a permanent election law, compliance with the national human rights institutions, cooperation with the ICTY, restructuring of the police, and implementation of housing laws. Although significant progress had been made on some of these issues, Bosnia and Hercegovina still did not meet the conditions articulated by the council, and further progress was needed. The rapporteur of the Political Affairs Committee, in his report of August 1999, came to a similar conclusion. Meanwhile, the Council of Europe's representation in Bosnia continued its activities on freedom of expression, trafficking of women, legal reform, prison systems, and other issues.

European Union

The European Union (E.U.) was the initiator of the "Pact for Stability in South Eastern Europe," which aims to develop peaceful and good neighborly relations and "to accelerate the transition in the region to stable democracies ... in which human rights ... are respected..." The pact aspires to enhance stability through regional cooperation and the prospect of integration into "Euro-Atlantic and global institutions."

The E.U. and its member states continued to be among the biggest donors for reconstruction programs in Bosnia and Hercegovina: the E.U. has contributed around 1 billion Euro in the period 1996-1999 (1996: 442 million; 1997: 360 million; 1998: 295 million; 1999: 210 million plus 45 million balance of payment assistance). In July 1999, the European Commission reached an agreement with the Bosnian Council of Ministers on a 69 million Euro aid package for reconstruction of housing and infrastructure.

Individual E.U. states continued to contribute to the reconstruction effort as well. The Dutch government announced a project to reconstruct eighty-nine houses and water systems in Novi Travnik. The German Technical Cooperation Agency (Gesellschaft fur Technische Zusammenarbeit , GTZ) concluded a project to build accommodations for displaced Bosnian Serb families in Bijeljina, which enabled Germany to repatriate thirty-six Bosniak families that had been prevented from returning because their houses had been occupied by these families.

United States

Together with the E.U., the United States was one of the biggest donors of reconstruction aid. Since the end of the war, the United States has contributed some \$800 million to the reconstruction efforts in Bosnia and Hercegovina. The bulk of this sum was spent on infrastructure projects, business development, and economic restructuring, while smaller sums were spent on democratic reform and human rights. The United States, like other donor governments and agencies, was severely disturbed by reports that as a result of corruption over \$1 billion had disappeared in Bosnia and Hercegovina, a substantial part of which consisted of uncollected taxes. The U.S. government quickly reassured the public that no U.S. aid had gone astray. Nonetheless, enormous amounts of public funds appear to have been misused, enriching the ruling political elite rather than benefiting the Bosnian population. The U.S. Congress has set up a committee headed by Robert Frowick, former head of OSCE's mission to Bosnia, to investigate allegations of widespread corruption.

During 1999, the United States strongly backed Milorad Dodik, the moderate caretaker prime-minister of the RS, in his struggle against hardline political elements, including the dismissed Republika Srpska president, Nikola Poplasen. However, Dodik consistently failed to deliver on his promises. On crucial postwar issues such as the return of refugees and the arrest of indictees, hardly any progress was made, despite considerable political and financial support.

TOP OF PAGE